

6. 9:00 AM CASE NUMBER: C25-03757

CASE NAME: CATHAY BANK, VS. CHRISTINA SEELYE

***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference trails the hearing on Line 18. If the tentative ruling is not contested, this CMC is continued to November 23, 2026 at 8:30 a.m. The Parties are ordered to meet and confer to discuss Alternative Dispute Resolution and to provide a further update to the Court on their efforts to resolve this case.

Law & Motion

7. 9:00 AM CASE NUMBER: C23-02239

CASE NAME: DAWN JANOWSKI VS. J B MECHANICAL, INC.

***HEARING ON MOTION IN RE: FINAL APPRIVAL OF CLASS ACTION & PAGA CLAIM**

FILED BY:

TENTATIVE RULING:

Summary

Plaintiff Dawn Janowski's ("Plaintiff") Motion for Final Approval of PAGA Settlement and Attorney's Fees against Defendant JB Mechanical Inc. ("Defendant") is **granted** as set forth herein. No appearance is required at the hearing on May 27, 2026.

Background

On September 6, 2023, Plaintiff filed a class action complaint against Defendant alleging seven causes of action related to labor law violations, including failure to provide meal and rest periods, failure to pay wages and overtime, failure to provide accurate wage statements, failure to timely pay final wages, failure to indemnify, and unfair competition. On November 9, 2023, Plaintiff Janowski filed a First Amended Complaint adding a claim for Civil Penalties under Labor Code § 2698. Plaintiff Janowski provided timely PAGA notice to Defendants and the LWDA on September 6, 2023, followed by a revised notice on September 14, 2023. After the LWDA did not express interest in investigating, Plaintiff filed the First Amended Complaint with the PAGA claim.

The parties commenced mediation, which resulted in a Gross Settlement Amount of \$600,000.00 on a class-wide and PAGA representative basis. Defendants will fund the Gross Settlement Amount and their share of payroll taxes in two installments: \$350,000.00 to be paid 30 days after Court approval, and \$250,000.00 to be paid 90 days after the first installment. The Class Period is defined as September 6, 2019, through April 9, 2025. Aggrieved Employees are hourly, non-exempt employees who worked for Defendants in California during the PAGA Period (September 6, 2022, through January 13, 2026).

The Class consists of named Plaintiffs and all hourly, non-exempt employees who worked for Defendants in California during the Class Period. It is an opt-out class with no claim form requirement, and no residual will revert to Defendants. The highest estimated Individual Class Payment is